



CHAPTER 23.

An Act to amend the Public Health (Scotland) Act, 1897, with respect to coal mine refuse liable to spontaneous combustion. [25th May 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. For the purpose of paragraph (5) of section sixteen of the Public Health (Scotland) Act, 1897, an accumulation or deposit of refuse from a coal mine in respect of which there is reasonable cause to believe that spontaneous combustion is likely to occur shall be deemed to be an accumulation or deposit which is a nuisance :

Coal mine
refuse liable
to spon-
taneous
combustion
to be
deemed
a nuisance.
60 & 61 Vict.
c. 38.

Provided that—

- (i) no application under section twenty-two of the said Act in respect of any such accumulation or deposit of refuse as aforesaid shall be made except to the sheriff and with the consent of the Department of Health for Scotland; and
- (ii) in any such application it shall be a defence for the respondent to prove that the best practicable means have been or are being taken for preventing the accumulation or deposit from becoming liable to spontaneous combustion.

CH. 23. *Public Health (Coal Mine 2 & 3 GEO. 6.
Refuse) (Scotland) Act, 1939.*

Short title
and citation.

2. This Act may be cited as the Public Health (Coal Mine Refuse) (Scotland) Act, 1939, and the Public Health (Scotland) Acts, 1897 and 1907, and this Act may be cited together as the Public Health (Scotland) Acts, 1897 to 1939.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1d. net